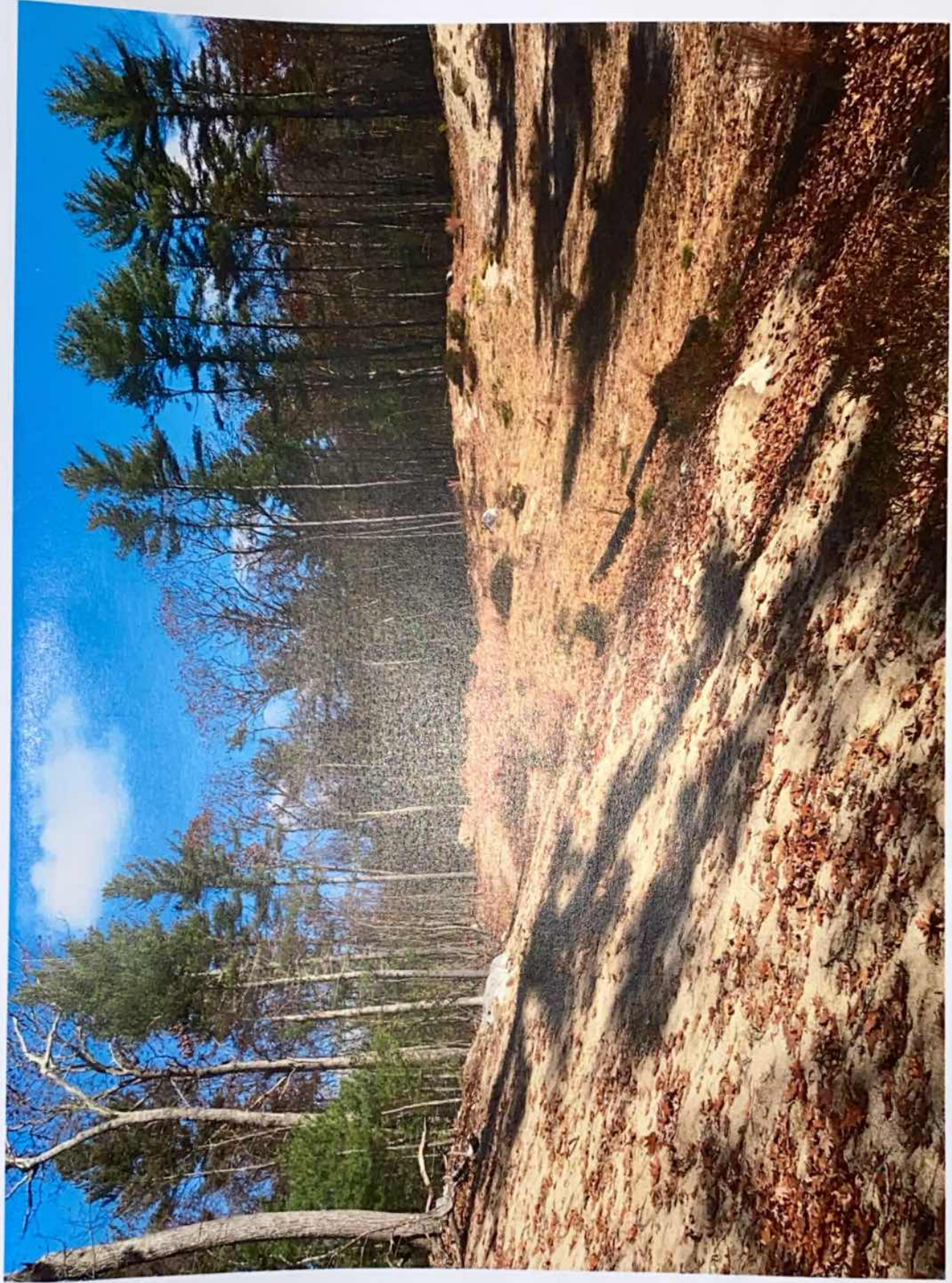
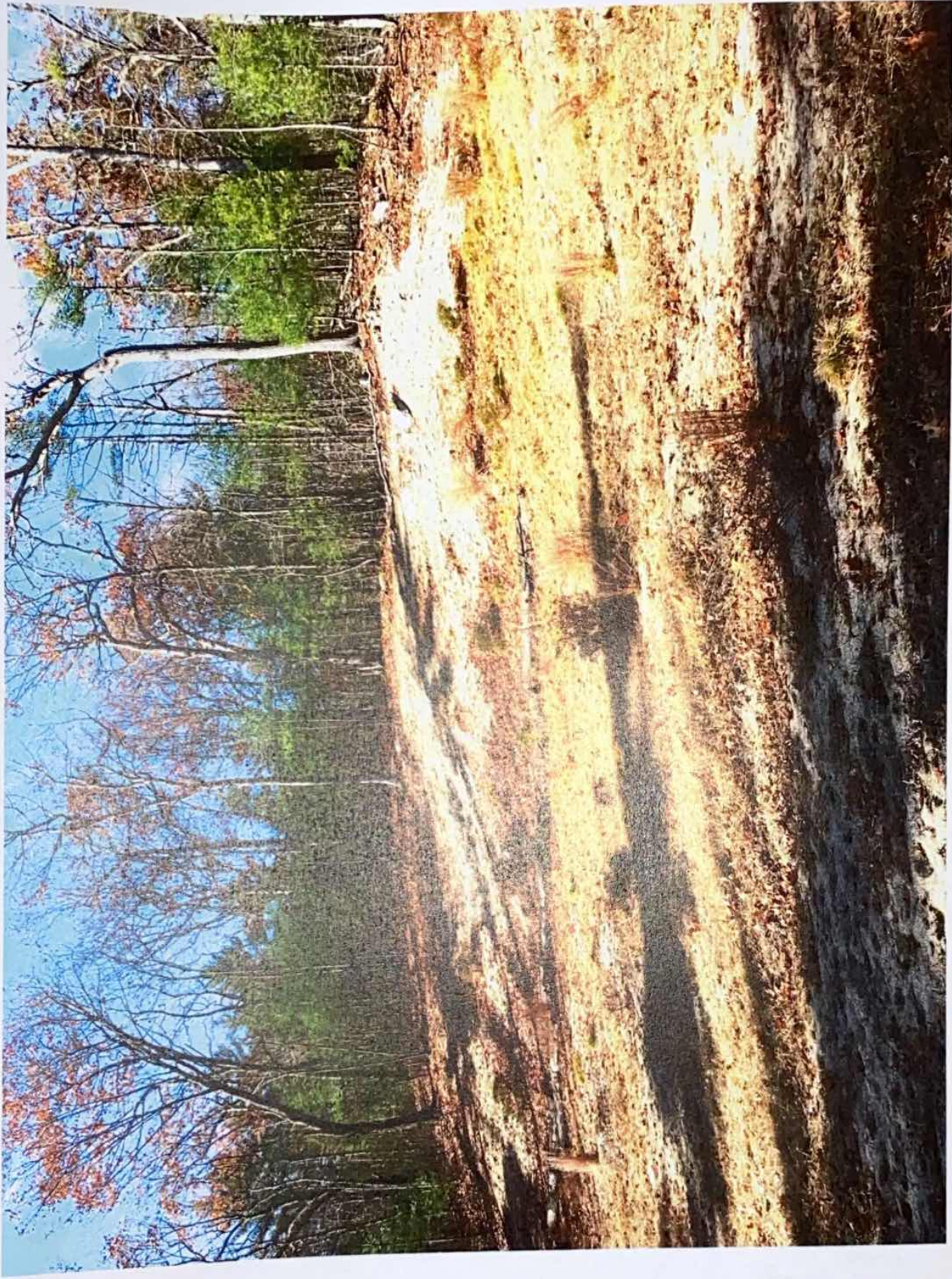
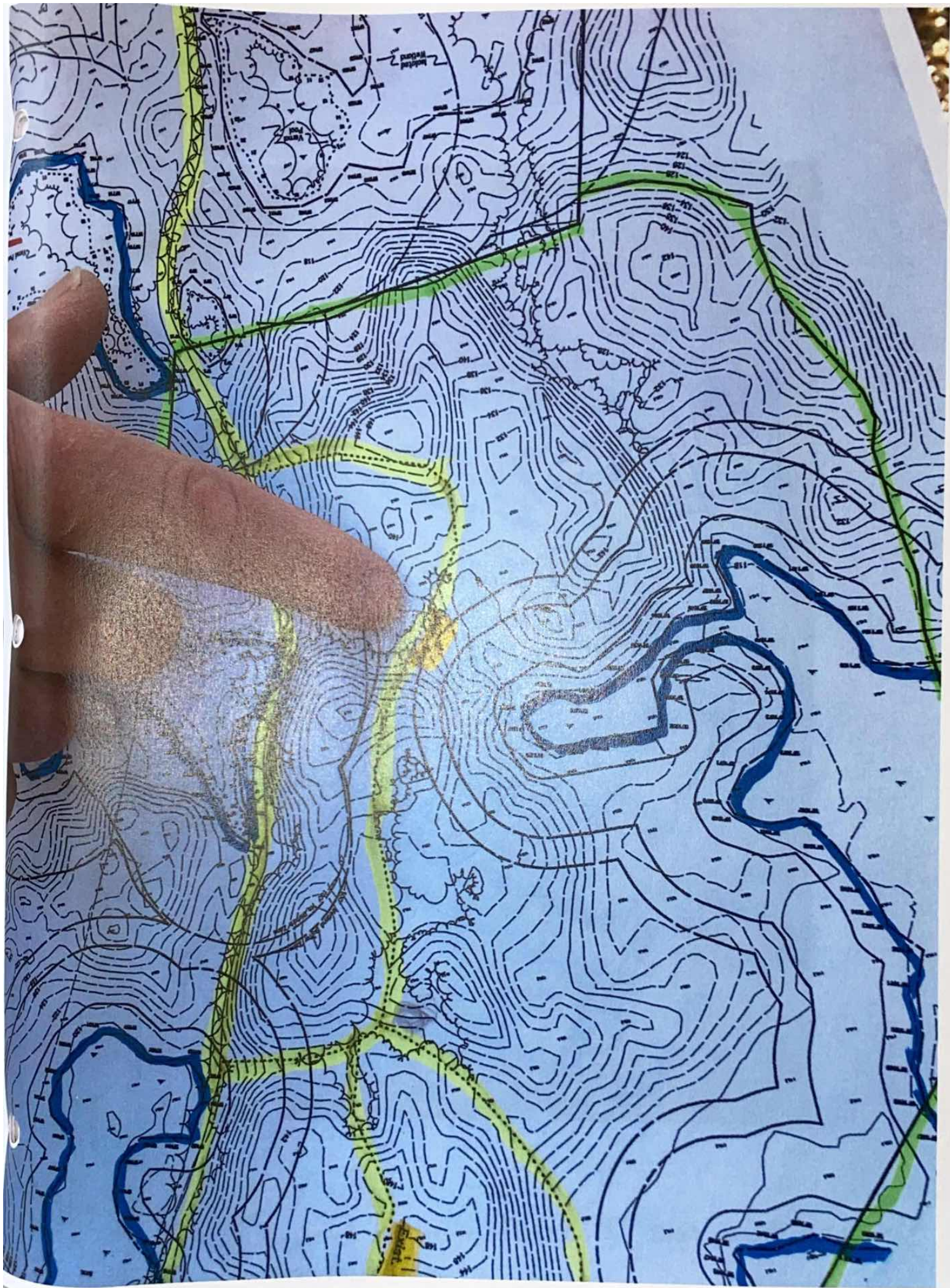




11/8/19 Turtle Habitat



11/8/19 Turtle Habitat





11/8/19 rising eastward existing trail. If southward, on right
← (on map on previous page)



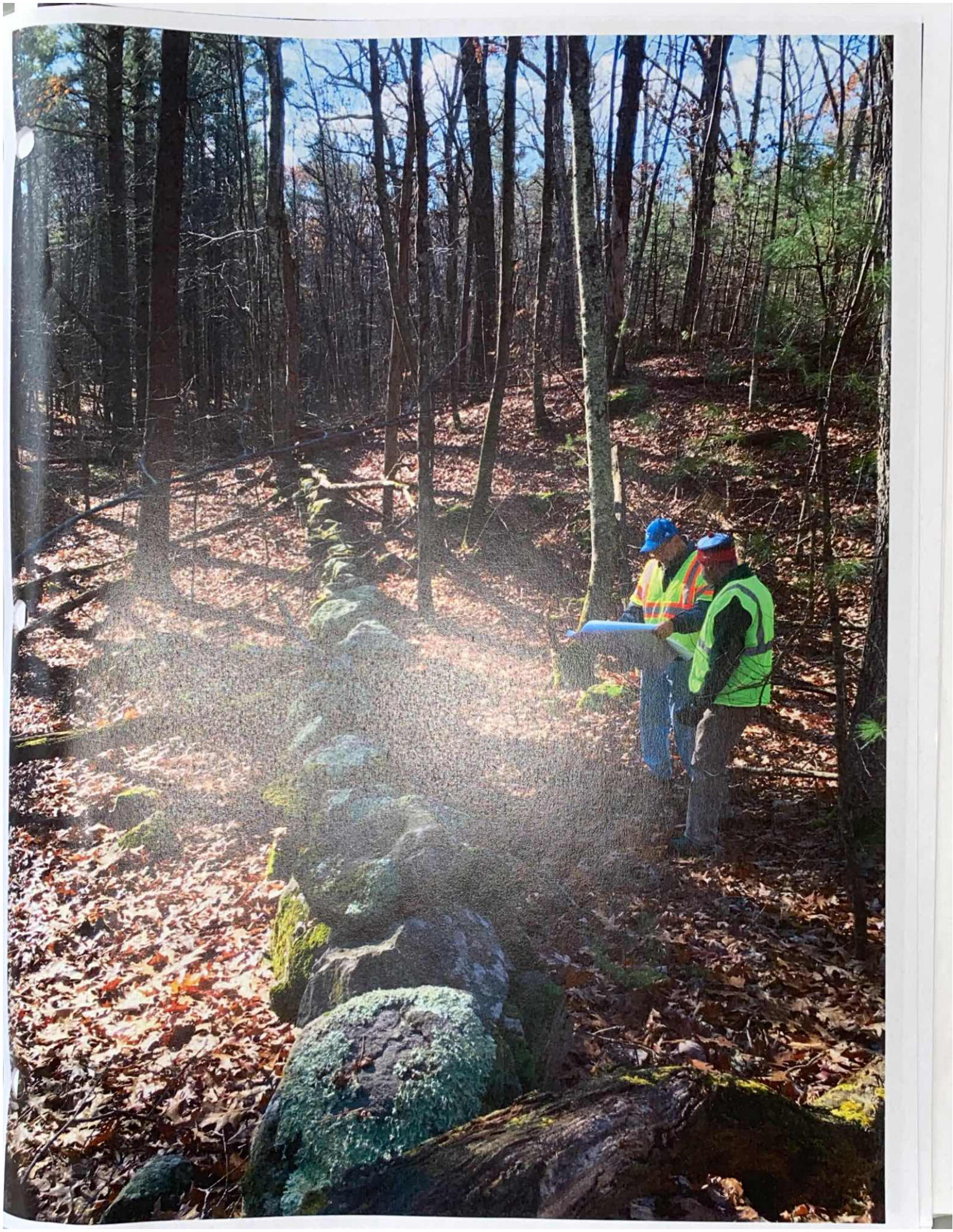
11/8/19 Totem by unknown. There are at least 3.

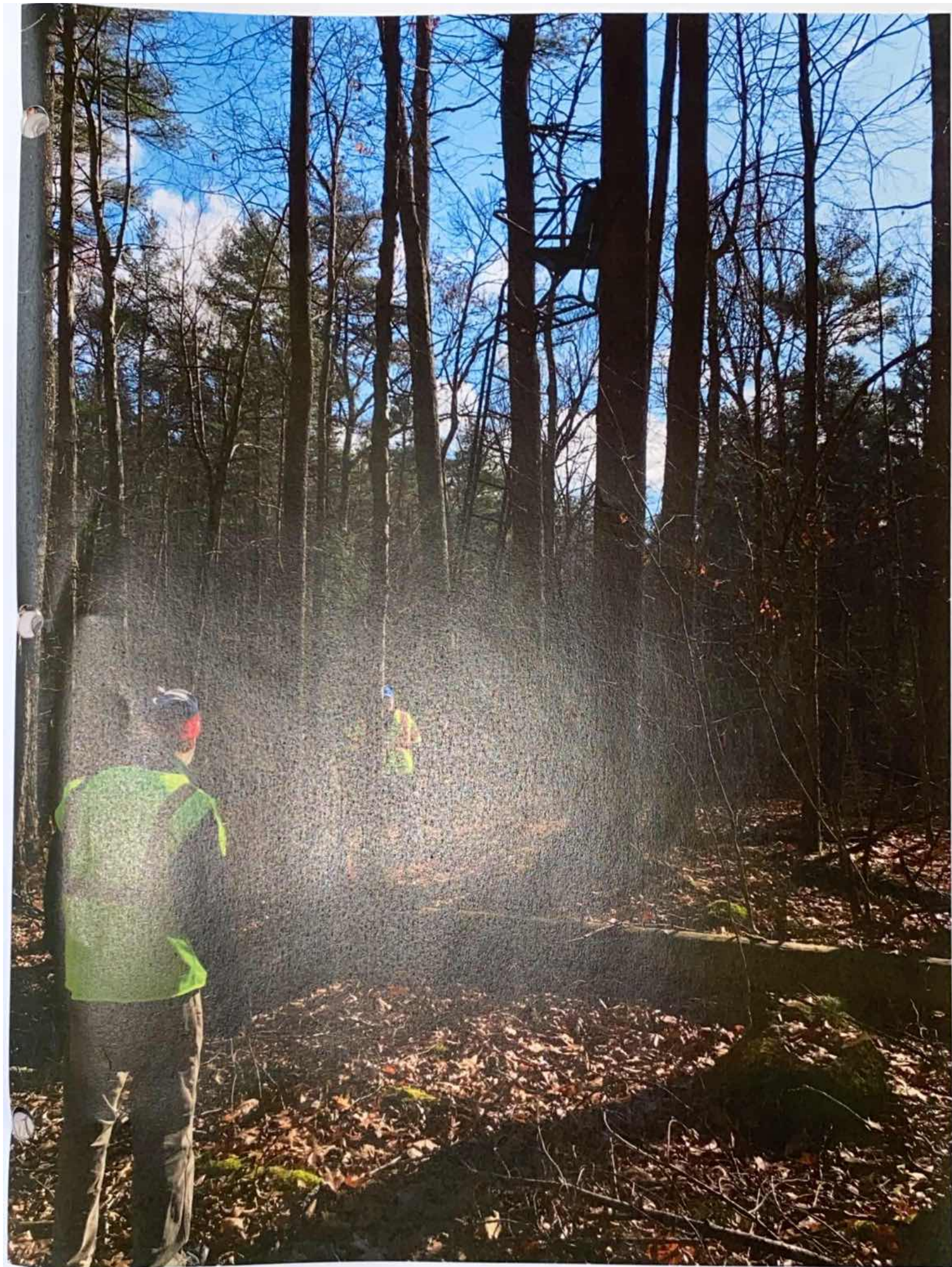


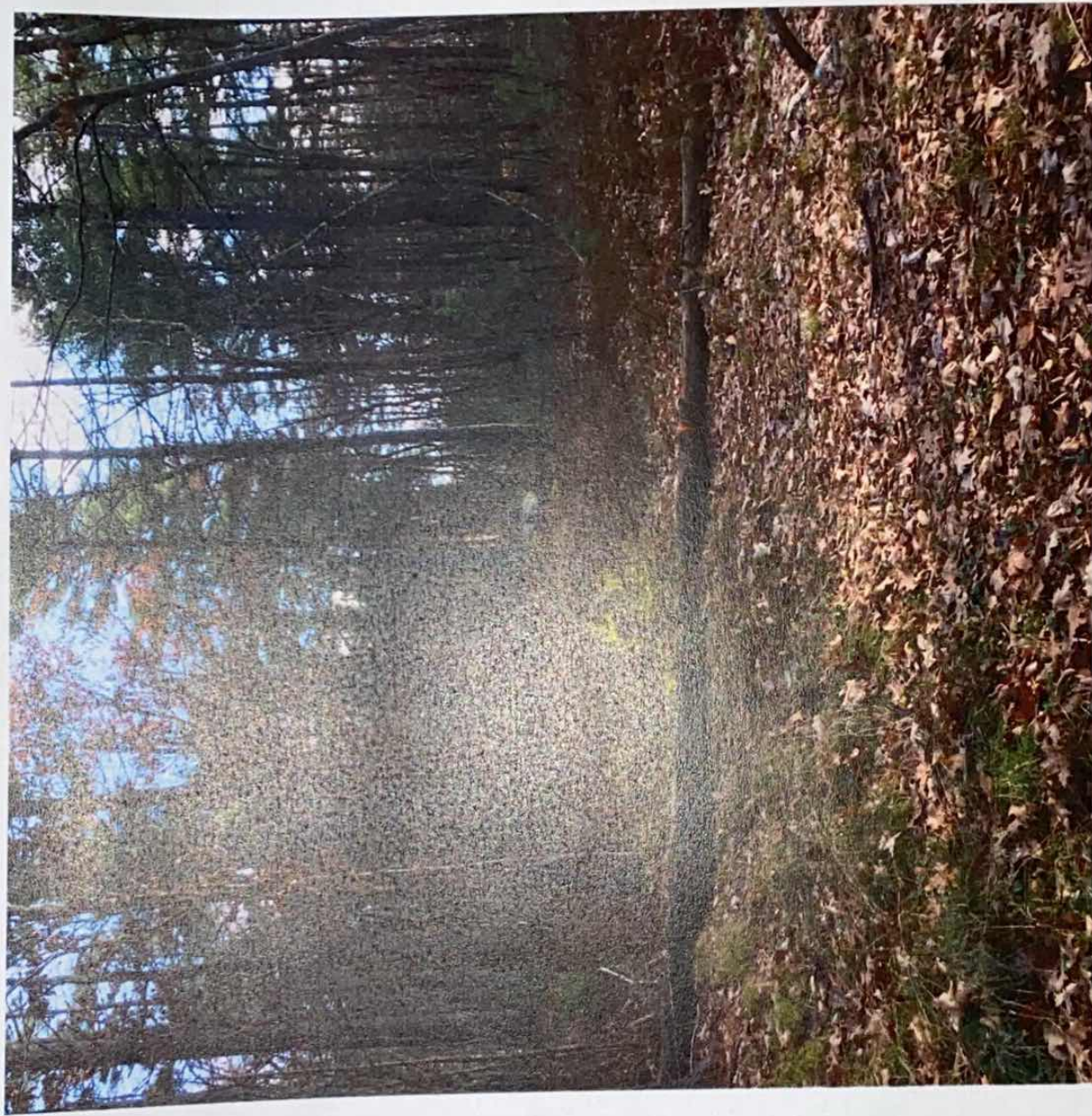
11/8/19 Boundary South Side Buxford Common

Gabe to
Turtle
Habitat
Box Comm
11/8/19









Boston Common 11/19 Metal Gate to Turtle Habitat





The Commonwealth of Massachusetts
Executive Office of Energy and Environmental Affairs
100 Cambridge Street, Suite 900
Boston, MA 02114

Charles D. Baker
GOVERNOR

Karyn E. Polito
LIEUTENANT GOVERNOR

Kathleen A. Theoharides
SECRETARY

Tel: (617) 626-1000
Fax: (617) 626-1181
<http://www.mass.gov/eea>

Alan Benson
Town Administrator
Boxford Board of Selectman
7A Spofford Road
Boxford, MA 01924-

October 11, 2019

Re: Conservation Restriction Approved by Secretary

CR Ref. #: 11440
CR Number: BOXFORD #037
CR Address:
Town: BOXFORD

Dear Alan:

The above referenced Conservation Restriction has been approved and signed by Secretary Kathleen Theoharides. It may now be recorded in the Registry of Deeds or District of the Land Court, as applicable.

Please forward a copy to me as soon as possible of the recorded instrument, which may be a PDF, showing the registry book and page number (s) and the date of recording. Once I receive the recorded Conservation Restriction we can mark it complete in our database. Because Community Preservation Act funds are connected to this Conservation Restriction, the recording information must also be reported to the state Community Preservation Act projects database (CP-3). Please provide a copy of the recorded document to the Community Preservation Committee that approved funding for this project and remind them to enter the recording information in the CP-3 database. Thank you.

Sincerely,

JOHN GIOIA
Conservation Restriction Reviewer
John.gioia@mass.gov
617-626-1138

Cc:

GRANTOR: The Town of Boxford, by and through its Board of Selectmen

GRANTEE: BTA/BOLT, Inc.

ADDRESS OF PREMISES: Middleton Road, Boxford, MA 01921

FOR GRANTOR'S TITLE SEE: Order of Taking recorded with the Essex South District Registry of Deeds in Book 27401, Page 149

CONSERVATION RESTRICTION

Boxford Common Conservation Land

The Town of Boxford, acting by and through its Board of Selectmen, with an address of 7A Spofford Road, Boxford, Essex County, Massachusetts 01921, being the sole owner of the below-described property, for its successors and assigns ("Grantor"), acting pursuant to Sections 31,32 and 33 of Chapter 184 of the Massachusetts General Laws, hereby grant, with QUITCLAIM COVENANTS, to BTA/BOLT, Inc., a Massachusetts non-profit corporation with an address of P.O. Box 95, Elm Street, Boxford, Massachusetts 01921 and its permitted successors and assigns ("Grantee") for consideration of \$1.00, in perpetuity and exclusively for conservation purposes, the following Conservation Restriction on a parcel of land located in the Town of Boxford, Massachusetts constituting approximately 52.76 acres, more or less ("Premises"), which Premises is shown as Restricted Areas A, B, C, D, E, and F, which Restricted Areas are located within Use Areas 1 and 2, all as shown on the a plan of land entitled "Conservation Restriction and Use Area Plan, Boxford, MA, Property of The Town of Boxford", dated April 8th, 2010, prepared by Donohoe and Parkhurst, Inc., and recorded at the Essex South District Registry of Deeds as Plan No. ___ of 20___, a reduced copy of which is attached as Exhibit A. For Grantor's title see Order of Taking recorded with the Essex South District Registry of Deeds in Book 27401, Page 149, which Order of Taking describes the Premises and additional land adjacent to the Premises (collectively, the "Property"), a copy of which is attached as Exhibit B.

1. PURPOSES

This Conservation Restriction is defined in and authorized by Sections 31-33 of Chapter 184 of the General Laws and otherwise by law. The purpose of this Conservation Restriction is to assure that the Premises will be maintained in its current condition in perpetuity and for conservation purposes, predominantly in a natural, scenic and undeveloped condition, and to prevent any use or change that would materially impair or interfere with its conservation and preservation values (the "conservation values").

The Property was purchased with CPA funds (Community Preservation Act G.L. c. 44B, Section 11) authorized by the vote taken under Article 13 of the October 23, 2007 Special Town Meeting, a copy of which is attached as Exhibit C-1. The Premises were dedicated to conservation purposes by the votes

taken under Articles 12 and 13 of the May 11, 2010 Annual Town Meeting, a copy of which is attached as Exhibit C-2, and the vote taken under Article 18 of the May 14, 2011 Annual Town Meeting, attached as Exhibit C-3. The portions of the Property not subject to this Conservation Restriction were dedicated to other uses by the votes referenced herein, including active recreation and community housing.

This Conservation Restriction will permanently protect a variety of habitats located on the Premises including Priority Habitat of Rare Species as identified by the Massachusetts Natural Heritage and Endangered Species Program (NHESP).

The Premises is subject to a MA Endangered Species Act (MESA) (G.L. c.131A) Conservation and Management Permit (010-131.DFW), issued by the Massachusetts Division of Fisheries & Wildlife (the "Division"), dated April 22, 2010, recorded with the Essex South District Registry of Deeds in Book 34534, Page 591 (the "Permit"). The Permit ensures protection of the Premises from future land use changes and provides for the creation and maintenance of a turtle nesting habitat.

The Premises is subject to an Order of Conditions issued under the Massachusetts Wetlands Protection Act, G.L. c.131, §40, dated December 9, 2013, recorded with the Essex South District Registry of Deeds in Book 35323, Page 415 and an Order of Conditions issued under the Boxford Wetlands Protection Bylaw, Town Code c. 192, dated December 9, 2013, recorded with the Essex South District Registry of Deeds in Book 34534, Page 637.

The conservation values of these Premises are:

- The protection of the Premises contributes to the protection of the natural character of the environs as the Premises abuts several other open spaces protected by conservation restrictions, providing a scenic and protected wildlife corridor and conforms to the Town of Boxford's Open Space and Recreation Plans of 2001, 2008 and 2016; the protection of the Premises will enhance the open-space value of these lands, as well as protect the Town's scenic landscape, forests, the Town and Region's water resources and provides extra protection to the Town's most fragile resources.
- The Premises are located within the 1992 Massachusetts Heritage Landscape Inventory, Boxford Reconnaissance Report, listed as being important for its woodlands, meadows and trails.
- Protection of Wildlife Habitat. The entire Premises falls within an area designated as "Priority Habitat of Rare Species" by NHESP. The Premises contains approximately 5.3 acres of wooded wetlands and six (6) vernal pools as described in the narrative and shown on the plan of record of "Order of Resource Area Delineation, DEP File #114-1102, on file at the Essex South Registry of Deeds, Book 29217, Page 384"
- ✕ • Public access trails for passive recreation, such as hiking, horseback riding, cross-country skiing, and other passive outdoor recreational activities, education, and nature study.

- The activities described in the Permit provide for surface and ground water enhanced protection through improved storm water management and protection of wetland resource areas. This Conservation Restriction protects those surface water and ground water improvements.

These and other conservation values of the Premises, as well as its current uses and state of improvement, are described in a Baseline Documentation Report ("Baseline Report") prepared by Grantee with the cooperation of the Grantor, consisting of maps, photographs, and other documents and on file with the Grantee and referenced herein. The Baseline Report (i) is acknowledged by Grantor and Grantee to be a complete and accurate representation of the condition and values of the Premises as of the date of this Conservation Restriction, and (ii) is intended to serve as an objective information baseline for subsequent monitoring of compliance with the terms of this Conservation Restriction as described herein. Notwithstanding the foregoing, the parties may utilize any evidence of the condition of the Premises at the time of this grant other than the Baseline Report, should the Baseline Report be unavailable or if it does not adequately address the issues presented.

2. PROHIBITED ACTS AND USES, EXCEPTIONS THERETO, AND PERMITTED USES

A. Prohibited Acts and Uses

Subject to the exceptions set forth herein, the Grantor will not perform or allow others to perform the following acts and uses which are prohibited on, above, and below the Premises:

- (1) Constructing, placing or allowing to remain any temporary or permanent buildings, tennis courts, landing strip, mobile home, swimming pool, asphalt or concrete pavement, sign, fence, billboard or other advertising display, antenna, utility pole, tower, conduit, line or other temporary or permanent structure or facility on, above or under the Premises;
- (2) Mining, excavating, dredging or removing from the Premises of soil, loam, peat, gravel, sand, rock or other mineral resource or natural deposit or otherwise make topographical changes to the area;
- (3) Placing, filling, storing or dumping on the Premises of soil, refuse, trash, vehicle bodies or parts, rubbish, debris, junk, waste or other substance or material whatsoever or the installation of underground storage tanks;
- (4) Cutting, removing or otherwise destroying trees, grasses or other vegetation;
- (5) Activities detrimental to drainage, flood control, water conservation, water quality, erosion control, soil conservation, or archaeological conservation;
- (6) Use, parking or storage of vehicles including motorcycles, mopeds, all-terrain vehicles, trail bikes, or any other motorized vehicles on the Premises except for vehicles necessary for public safety (i.e., fire, police, ambulance, other government officials) in carrying out their lawful duties;

- (7) Unless necessary for habitat management activities, the disruption, removal, or destruction of the stone walls or granite fence posts on the Premises;
- (8) Subdivision or conveyance of a part or portion of the Premises alone, or division or subdivision of the Premises, and no portion of the Premises may be used towards building or development requirements on this or any other parcel.
- (9) The use of the Premises for business, residential, or industrial purposes;
- (10) Any other use of the Premises or activity thereon which is inconsistent with the purpose of this Conservation Restriction or which would materially impair its conservation values.

B. Reserved Rights and Exceptions

The Grantor reserves the right to conduct or permit the following activities and uses on the Premises, but only if such uses and activities do not materially impair the conservation values or purposes of this Conservation Restriction:

- (1) Recreational Activities. Hiking, horseback riding, cross-country skiing and other non-motorized passive outdoor recreational activities that do not materially alter the landscape and do not degrade environmental quality, provided that wheel chairs, mobility aids, and other power-driven mobility devices, as such terms may be defined in the Americans With Disabilities Act, which aids and devices may be motorized, are permitted.
- (2) Vegetation Management. The removing of brush, selective de minimus pruning and cutting to prevent, control or remove hazards, disease, insect or fire damage, or to preserve the present condition of the Premises, including vistas, woods roads, fence lines and trails and meadows;
- (3) Forest Management. In accordance with generally accepted best management practices to ensure the protection of the conservation values, conducting sound forest management activities that maintain or improve the health of the forest, and the limited use of motorized vehicles necessary to conduct such activities (hereinafter, "Forestry Activities"), provided that any such Forestry Activities are carried out pursuant to a Forest Management or Stewardship Plan prepared by a qualified professional (hereinafter the "Forestry Plan"). Commercial timber harvesting or any other Forestry Activities of a commercial nature are specifically excluded from this Reserved Right.

Before any Forestry Activities occur on the Premises, Grantor shall submit a Forestry Plan to the Grantee, the Boxford Conservation Commission, if the proposed work is within its jurisdictional area, and to any other required state agencies for their approval. The Forestry Plan shall:

- (i) include a certification that the Forestry Plan complies with the terms of this Conservation Restriction; and
- (ii) be effective for a ten (10) year period and shall be resubmitted once every ten (10) years as necessary if additional Forestry Activities are desired.

All Forestry Activities shall avoid any stone structures or historical and cultural resources and shall be reasonably required to prevent any damage thereto. All cutting operations shall be supervised by a licensed forester.

(4) Non-native or nuisance species. The removal of non-native invasive species, the inter-planting of native species, or disease resistant hybrids thereof and the control of species in a manner that minimizes damage to surrounding, non-target species and preserves water quality. The use of pesticides and herbicides to carry out the activities permitted in this Section (2)(B)(4) is permitted only with the prior approval of the Grantee.

(5) Composting. The stockpiling and composting of stumps, trees and brush limbs and similar biodegradable materials originating on the Premises, and excluding such materials that may originate on portions of the Property not including the Premises, such as the active recreation fields, provided that such stockpiling and composting is in locations where the presence of such activities will not impair the conservation values;

(6) Wildlife Habitat Improvement. Any activities required for the creation and maintenance of the turtle nesting area as described in the Permit. In addition, with the prior written permission of Grantee, measures designed to restore native biotic communities, or to maintain, enhance or restore wildlife, wildlife habitat, or rare or endangered species including selective planting of native trees, shrubs and plant species;

(7) Trails. The maintenance of existing footpaths and woods roads and, with the prior approval of the Grantee, the installation of new trails not to exceed a width of eight (8) feet,

(8) Motorized Vehicles. Use of motorized vehicles only as necessary to conduct the activities described in the Permit and other permitted activities described herein, including to allow the Grantee to inspect the Premises, and including the limited uses for recreational activities as described in Section (2)(B)(1) and provided that such use is not detrimental to water quality, wetland integrity, fragile habitat and soils, wildlife and plant conservation, and that such use is restricted to designated areas such as roads or trails designated as suitable with approval of Grantee.

(9) Signs. The erection, maintenance and replacement of signs with respect to hunting, trespass, trail access, identity and address of the occupants, the Grantee's interest in the Premises, and the protected conservation values;

(10) Permits. The exercise of any right reserved by Grantor under this Section 2(B) shall be in compliance with zoning, the Wetlands Protection Act, the Town of Boxford Wetlands Protection Bylaw, and all other applicable federal, state and local laws, rules, regulations, and permits. The inclusion of any reserved right requiring a permit from a public agency does not imply that the Grantee or the Commonwealth takes any position whether such permit should be issued.

C. Notice and Approval.

Whenever notice to or approval by Grantee is required, Grantor shall notify Grantee in writing not less than 60 days prior to the date Grantor intends to undertake the activity in question. The notice shall describe the nature, scope, design, location, timetable and any other material aspect of proposed activity in sufficient detail to permit the Grantee to make an informed judgment as to its consistency with the purposes of this Conservation Restriction. Where Grantee's approval is required, Grantee shall grant or withhold approval in writing within 60 days of receipt of Grantor's request. Grantee's approval shall not be unreasonably withheld, but shall only be granted upon a showing that the proposed activity shall not materially impair the purposes of this Conservation Restriction. Failure of Grantee to respond in writing within 60 days shall be deemed to constitute approval by Grantee of the request as submitted, so long as the request sets forth the provisions of this section relating to deemed approval after 60 days in the notice, the requested activity is not prohibited herein, and the activity will not impair the conservation values or purposes of this Conservation Restriction.

3. LEGAL REMEDIES OF THE GRANTEE

A. Legal and Injunctive Relief

The rights hereby granted shall include the right to enforce this Conservation Restriction by appropriate legal proceedings and to obtain injunctive and other equitable relief against any violations, including, without limitation, relief requiring restoration of the Premises to their condition prior to the time of the injury complained of (it being agreed that the Grantee will have no adequate remedy at law). The rights hereby granted shall be in addition to, and not in limitation of, any other rights and remedies available to the Grantee for the enforcement of this Conservation Restriction. Grantee agrees to cooperate for a reasonable period of time prior to resorting to legal means in resolving issues concerning violations provided Grantor ceases objectionable actions and Grantee determines there is no ongoing diminution of the conservation values of the Conservation Restriction.

Grantor covenants and agrees to reimburse to Grantee all reasonable costs and expenses (including reasonable counsel fees) incurred in enforcing this Conservation Restriction or in taking reasonable measures to remedy, abate or correct any violation thereof, provided that a violation of this Conservation Restriction is acknowledged by Grantor or determined by a court of competent jurisdiction to have occurred. In the event of a dispute over the boundaries of the Conservation Restriction, Grantor shall pay for a survey and to have the boundaries permanently marked.

B. Non-Waiver

Enforcement of the terms of this Conservation Restriction shall be at the discretion of Grantee. Any election by the Grantee as to the manner and timing of its right to enforce this Conservation Restriction or otherwise exercise its rights hereunder shall not be deemed or construed to be a waiver of such rights.

C. Disclaimer of Liability

By acceptance of this conservation restriction, the Grantee does not undertake any liability or obligation relating to the condition of the Premises pertaining to compliance with and including, but not limited to, hazardous materials, zoning, environmental laws and regulations, or acts not caused by the Grantee or its agents.

D. Acts Beyond the Grantor's Control

Nothing contained in this Conservation Restriction shall be construed to entitle the Grantee to bring any actions against the Grantor for any injury to or change in the Premises resulting from causes beyond the Grantor's control, including but not limited to fire, flood, storm and earth movement, or from any prudent action taken by the Grantor under emergency conditions to prevent, abate, or mitigate significant injury to the Premises resulting from such causes. In the event of any such occurrence, the Grantor and Grantee will cooperate in the restoration of the Premises, if desirable and feasible.

4. ACCESS

To the Grantee. The Grantor acknowledges that the Grantee, or its duly authorized agents or representatives, will be inspecting the Premises to determine compliance with or to enforce this Conservation Restriction, and hereby grants access to the Premises to the Grantee, or its duly authorized agents or representatives to accomplish such activities. The Grantor also grants to the Grantee, after notice of a violation and failure of the Grantor to cure said violation, the right to take any and all actions with respect to the Premises as may be necessary or appropriate to remedy or abate any violation hereof, including but not limited to the right to perform a survey of boundary lines.

To the General Public. The Grantor hereby grants access to the Premises to the general public in perpetuity, for passive recreational activities as mentioned in Section 2(B)(1) Recreational Activities, and as subject to reasonable rules and regulations established by the Grantor.

5. EXTINGUISHMENT

A. Termination or Extinguishment. If circumstances arise in the future such as render the purpose of this Conservation Restriction impossible to accomplish, this Conservation Restriction can only be terminated or extinguished, whether in whole or in part, by a court of competent jurisdiction under applicable law after review and approval by the Secretary of the Executive Office of Energy and Environmental Affairs of the Commonwealth of Massachusetts and in compliance with Article 97 of the Amendments to the Massachusetts Constitution.

B. Proceeds. Grantor and Grantee agree that the conveyance of this Conservation Restriction gives rise to a real property right, immediately vested in the Grantee, with a fair market value that is at least equal to the proportionate value that this Conservation Restriction bears to the value of the unrestricted Premises. Such proportionate value of the Grantee's property right shall remain constant. Any proceeds arising from any Termination or Extinguishment or other release of this Conservation

Restriction will be distributed only after complying with the terms of any gift, grant, or other funding requirements, including the Community Preservation Act.

C. Grantor/Grantee Cooperation Regarding Public Action. Whenever all or any part of the Premises or any interest therein is taken by public authority under power of eminent domain or other act of public authority, then the Grantor and the Grantee shall cooperate in recovering the full value of all direct and consequential damages resulting from such action. All related expenses incurred by the Grantor and the Grantee shall first be paid out of any recovered proceeds, and the remaining proceeds shall be distributed in accordance with the Community Preservation Act, and any applicable law, grant or agreement, and then between the Grantor and Grantee in shares equal to the proportionate value of the respective interests in the Premises as described in Section 5(B). If a less than fee interest is taken, the proceeds shall be equitably allocated according to the nature of the interest taken. The Grantee shall use its share of the proceeds like a continuing trust in a manner consistent with the conservation purposes of this grant.

6. ASSIGNABILITY

A. Running of the Burden

The burdens of this Conservation Restriction shall run with the Premises in perpetuity, and shall be enforceable against the Grantor and the successors and assigns of the Grantor holding any interest in the Premises.

B. Execution of Instruments

The Grantee is authorized to record or file any notices or instruments appropriate to assuring the perpetual enforceability of this Conservation Restriction; the Grantor, on behalf of itself and its successors and assigns, appoint the Grantee their attorney-in-fact to execute, acknowledge and deliver any such instruments on its behalf. Without limiting the foregoing, the Grantor and its successors and assigns agree themselves to execute any such instruments upon request.

C. Running of the Benefit

The benefits of this Conservation Restriction shall be in gross and shall not be assignable by the Grantee, except in the following instances:

As a condition of any assignment, the Grantee shall require that the purpose of this Conservation Restriction continues to be carried out; that the Assignee is not an owner of the fee in the Premises, and the Assignee, at the time of the assignment, qualifies under Section 170(h) of the Internal Revenue Code of 1986, as amended, and applicable regulations thereunder, and is a donee eligible to receive this Conservation Restriction under Section 32 of Chapter 184 of the General Laws of Massachusetts. Any assignment will comply with Article 97 of the Amendments to the Constitution of the Commonwealth of Massachusetts, if applicable.

7. SUBSEQUENT TRANSFERS

The Grantor agrees to incorporate by reference the terms of this Conservation Restriction in any deed or other legal instrument by which it divests itself of any interest in all or a portion of the Premises, including a leasehold interest and to notify the Grantee not less than twenty(20) days prior to the execution of any such transfer. Failure to do so shall not impair the validity or enforceability of this Conservation Restriction. Any transfer will comply with Article 97 of the Amendments to the Constitution of the Commonwealth of Massachusetts, if applicable.

The Grantor shall not be liable for violations occurring after its ownership. Liability for any acts or omissions occurring prior to any transfer and liability for any transfer if in violation of this Conservation Restriction shall survive the transfer. Any new owner shall cooperate in the restoration of the Premises or removal of violations caused by prior owner(s) and may be held responsible for any continuing violations.

8. ESTOPPEL CERTIFICATES

Upon request by the Grantor, the Grantee shall, within twenty (20) days, execute and deliver to the Grantor any document, including an estoppel certificate, which certifies the Grantor's compliance with any obligation of the Grantor contained in this Conservation Restriction.

9. NON MERGER

The parties intend that any future acquisition of the Premises shall not result in a merger of the Conservation Restriction into the fee. The Grantor agrees that it will not grant, and the Grantee agrees that it will not take title, to any part of the Premises without having first assigned this Conservation Restriction to a non-fee owner in compliance with the requirements described in Section 6(C) to ensure that merger does not occur and that this Conservation Restriction continues to be enforceable by a non-fee owner.

10. AMENDMENT

If circumstances arise under which an amendment to or modification of this Conservation Restriction would be appropriate, Grantor and Grantee may jointly amend this Conservation Restriction; provided that no amendment shall be allowed that will affect the qualification of this Conservation Restriction or the status of Grantee under any applicable laws, including Section 170(h) of the Internal Revenue Code of 1986, as amended, or Sections 31-33 of Chapter 184 of the General laws of Massachusetts. Any amendments to this conservation restriction shall occur only in exceptional circumstances. The Grantee will consider amendments only to correct an error or oversight, to clarify an ambiguity, or where there is a net gain in conservation value. All expenses of all parties in considering and/or implementing an amendment shall be borne by the persons or entity seeking the amendment. Any amendment shall be consistent with the purposes of this Conservation Restriction, shall not affect its perpetual duration, shall be approved by the Secretary of Energy and Environmental Affairs and if applicable, shall comply